

BEFORE THE PROCUREMENT REVIEW COMMITTEE
Baluchistan Public Procurement Regulatory Authority

PRC Appeal No. 50/2026

M/S Haji Syed Noor & Sons

Through its Representative, Muhammad Rehan Khan,
Resident of Muhallah Airport, District Zhob.

...Appellant

Versus

1. The Secretary, Urban Planning & Development Department, Government of Balochistan.
2. The Executive Engineer, Urban Planning & Development Department, Zhob Division Zhob.
3. The Grievance Redressal Committee.
4. M/S Ideal Construction Company.

...Respondents

QUORUM

1. Habib Ur Rehman Jamot — MD / Chairman PRC
2. Mubashir Ali Khan (FCIPS) — Member
3. Engr. (R) Iftikhar Mir — Technical Member PRC
4. Engr. Junaid Shah — Member PRC
5. Abdul Wahab Bulledi, Advocate — Private Member PRC

APPEAL UNDER RULE 56-A OF THE BPPRA RULES, 2014
TSE NO. 252601955453

For the Appellant:

Mr. Muhammad Rehan

For the Respondents:

Mr. Kalemullah Khan, Director (Legal), Urban Planning & Development Department

Date of Final Hearing: 10-03-2026.

Decided on: 16-03-2026

1. Introduction

The instant appeal has been filed by M/S Haji Syed Noor & Sons under Rule-56-A of the BPPRA Rules, 2014, challenging the decision of the Procuring Agency whereby the appellant was declared ineligible under the eligibility criteria in the procurement process relating to the work titled:

“Jirga Hall Renovation and Conversion into Public Library at Zhob”
under TSE No. 252601955453.

The appellant contends that the decision of the Procuring Agency is arbitrary, unlawful, and contrary to the provisions of the procurement rules.

2. Prayers of the Appellant

The appellant submits that he is a well-known contractor and is running a construction company under the name and style M/S Haji Syed Noor & Sons, which is duly registered with the Pakistan Engineering Council (PEC) under Category C-1.

It is stated that, in response to the NIT bearing PRQ No. 3457 dated 26-01-2026, the appellant participated in the bidding process and submitted all required documents as per the bidding documents.

However, the Procuring Agency allegedly declared the appellant ineligible under the eligibility criteria, which, according to the appellant, is unjustified.

The appellant further submits that, being aggrieved by the said decision, he filed a written complaint before the Director, Urban Planning & Development Department, on 12-02-2026, which remained un-responded. Consequently, the appellant has approached this Committee by way of the present appeal.

3. Contentions of the Respondents

Notices were issued to the respondents, who appeared and filed their written reply. A copy of the same was provided to the appellant.

The official respondents strongly contested the appeal and raised several objections.

It was contended that the appellant did not file any complaint before the Complaint Redressal Committee (CRC). It was further explained that the scheme's approval forum was District Development Committee (DDC), while a CRC was notified under the Chairmanship of Deputy Commissioner Zhob was acting as the Complaint Redressal Committee for projects under the Baluchistan Special Development Initiative (BSDI) Phase-II. The Appellant however, may have filed a complaint in the office of Deputy Director Technical, UP&DD, which is not the notified CRC

The respondents further submitted that the appellant failed to submit the Combined Legal Affidavit required under the bidding documents, declaring that the firm had never been blacklisted.

It was argued that the appellant had previously been blacklisted by the CWPP&H Department due to poor performance for a period of 36 months vide notification dated 14-04-2025. Although the said blacklisting was later withdrawn through another notification dated 22-05-2025, the appellant concealed the earlier notification while submitting the declaration of non blacklisting.

According to the respondents, the appellant submitted a false declaration of non-blacklisting, stating that:

"Our firm has never been blacklisted by any Government or Semi-Government organization."

Therefore, the Procuring Agency lawfully disqualified the appellant under the eligibility criteria for concealing the fact of his firm's blacklisting

4. Points for Determination

In light of the pleadings and submissions of the parties, the following points arise for determination:

1. Whether the appellant had approached the competent Grievance Redressal Committee (CRC) before filing the present appeal?

2. Whether the appellant submitted a false declaration regarding non-blacklisting?
3. Whether the decision of the Procuring Agency declaring the appellant ineligible was lawful and in accordance with the bidding documents and procurement rules?

5. Discussion and Analysis

We have heard the learned representatives of the parties and have carefully examined the available record.

The record reveals that while submitting the declaration regarding non-blacklisting, the appellant concealed the fact that his firm had previously been blacklisted by the CWPP&H Department vide notification dated 14-04-2025.

Although the said blacklisting was subsequently withdrawn through notification dated 22-05-2025, the earlier notification remained a material fact which ought to have been disclosed by the appellant while submitting the declaration.

Instead, the appellant submitted a declaration stating that the firm had never been blacklisted by any Government or Semi-Government organization, which is factually incorrect.

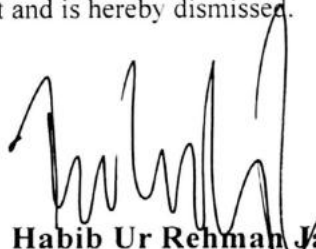
Furthermore, the record indicates that the appellant did not approach the competent forum, i.e., the Complaint Redressal Committee notified vide notification dated 19th January 2026 under the Chairmanship of Deputy Commissioner Zhob, before filing the present appeal before this Committee.

The concealment of material information and submission of a false declaration constitute sufficient grounds for disqualification under the eligibility criteria.

6. Decision / Order

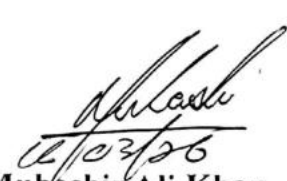
For the reasons discussed above, this Committee is of the considered view that the appellant has failed to establish any illegality, irregularity, or procedural violation on the part of the Procuring Agency.

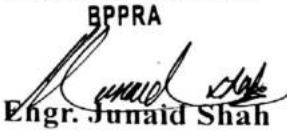
The appeal is devoid of merit and is hereby dismissed.


Habib Ur Rehman Jamot.
chairman

Chairman
Government of Balochistan
Public Procurement Review Committee
(B-PPRA)

16/3/2026


Mubashir Ali Khan
Member
Procurement Review Committee
BPPRA


Engr. Junaid Shah
Member
Procurement Review Committee
BPPRA


Engr.(R) Iftikhar Mir
Member
Procurement Review Committee
BPPRA


Abdul Wahab Buledi
Member
Procurement Review Committee
BPPRA